The Physio Clinic Byron

PRIVATE OFFICE LICENCE AGREEMENT

Licensor	**Hailey Knight, owner of The Physio Clinic Byron**
ABN	65189703208
Address	Unit 36 / 5 Easy Street, Habitat, Byron Bay, NSW, 2481
Contact Name	Hailey Knight
Contact Email	hello@physioclinicbyron.com
Contact Phone	0425 307794

TBC

Licensee	**Ngairi Beamish / Gypsy Massage Medicine**
ABN/ACN.	TBC
Address	829 Pocket Road, The Pocket, NSW 2483
Contact Email	listeninglove.sharedspaces@gmail.com
Contact Phone.	0407 418 627

Premises	
Centre location	36/5 Easy Street, Byron Bay, NSW, 2481
Allocated Room	Room 1
Day(s) of the week	Sunday
Room Fee	$120 + gst each day (Weekend Rate) /

Term	**M**onth to month
Commencement Date	Sunday 30th August, 2026

Permitted Use	**Health-related consultation, therapy and related services**

Monthly Fee	**$572 (incl. GST of $52)**
Monthly Fee Payment Date	29th of each month
Bond	$520 (GST exempt)

Monthly fee payments are to be made into the following bank account:

Bank:	Bankwest
Name:	Hailey Knight
BSB:	302 963
Account Number:	0041139

The Physio Clinic Byron

This Agreement incorporates the Terms & Conditions outlined below, which both parties have read and understood. Both parties agree to comply with the Terms & Conditions.

sample

Name: sample	Name:
Title: 09/30/2001	Title:
Date (DD/MM/YYYY):	Date (DD/MM/YYYY):
Authorised signature:	Authorised signature:

1. GENERAL

1

(a) This Agreement:

This Agreement comprises the first page of this document entitled "Private Office Licence Agreement" ('**Cover Page**') and these Terms and conditions ('**Ts and Cs**') and these documents are collectively referred to in this document as the '**Agreement**'. If there is any inconsistency between the Cover Page and the Ts and Cs, the Cover page will prevail to the extent of that inconsistency. This Agreement supersedes any prior written or verbal agreements between the Licensor and the Licensee.

(b) Nature of this Agreement:

This Agreement is personal to the Licensee and is not assignable by the Licensee, and the Licensee shall not sub-licence, share or part with possession of the Premises. This Agreement gives the Licensee no legal or equitable interest in the Premises or Centre, just the non-exclusive right to share the Premises (and certain shared facilities) with the Licensor and other licensees and occupants. For the avoidance of doubt, this Agreement is not deemed to be a lease.

2 *Definitions/ Interpretation:*

In this Agreement, 'Premises' means the workspace(s) and/or 'Centre" identified on the Cover Page. 'Premises' and 'Centre' are interchangeable. 'Premises' includes any fixtures, fittings, furnishing, plant, equipment and chattels owned by the Licensor and at any time installed in the premises. Centre Room is the room or 'office' allocated for use by the Licensee, as identified on the Cover Page.

3 *All notices must be in writing:*

Notices to the Licensee will be emailed to the Licensee (at the email nominated on the Cover Page) or an authorised representative of the Licensee. Notices to Licensor will be emailed to the Licensor's address (as nominated on the Cover Page). The terms of this deed of license may be varied by agreement in writing, at any time, between the Licensor and Licensee.

4 *Joint and several liability:*

Where the Licensee comprises more than one party, those parties are jointly and severally liable to observe and perform the Licensee's obligations under this Agreement.

5 *Comply with rules:*

The Licensee must comply with any house rules that the Licensor impose on users within the Centre from time to time. The Licensee must comply at all times with the reasonable directions of the Licensor in relation to the occupation and use of the Premises, including in relation to workplace health and safety requirements.

6 *Termination of this Agreement:*

(a) Termination by the Licensee:

The Licensee may terminate this Agreement for any reason subject to the Licensee giving 1 full months written notice, from the recurring monthly invoice date, and paying the Licensor any outstanding invoices or fees.

(b) Termination by the Licensor:

The Licensor may terminate this Agreement for any reason subject to the Licensor giving 1 months written notice, from the recurring monthly invoice date.

7 End of Agreement:

When this Agreement ends, the Licensee is to vacate the Premises immediately, leaving the Premises in the same condition as it was when the Licensee entered the Premises (including removing the Licensee's property, equipment and other items), fair wear and tear excepted. The Licensor reserves the right to charge reasonable additional fees for any repairs needed above and beyond normal wear and tear. For example, beyond reasonable wear on the walls will require wall repair and repainting.

If the Licensee leaves any property in the Centre - the Licensor may dispose of it at the Licensee's cost in any way the Licensor chooses without owing the Licensee any responsibility for it or any sale proceeds**.** Suppose the Licensee continues to receive mail at the Centre address after this Agreement has ended. In that case, the Licensor will not be responsible for any loss, claim or liability incurred due to the Licensee's failure to redirect their mail.

8 Keys and passes:

The Licensee is not permitted to make copies of any keys or swipe cards to the Premises or the Centre without the Licensor's prior written consent. On or before the expiry of this Agreement, the Licensee must return to the Licensor all Access Passes for the Premises and Centre. Whenever any Access Pass is lost, the Licensee is to report such loss to the Licensor immediately and pay any cost incurred by the Licensor to replace those Access Passes (e.g., $30+GST per card) as well as the cost of replacing any lock/keys/security devices changed by the Licensor for other occupants (i.e., minimum of $500+GST for replacement of lock/keys/security devices).

9. Return of Bond:

Upon Termination of this Agreement, if the Licensee has complied with all its obligations under this Agreement, the

Bond (if applicable) will subsequently be refunded to the Licensee within 14 days. Suppose the Licensee remains in default of any obligations under this Agreement. In that case, the Licensor may apply the Bond to the cost of rectifying the Licensee's default (including paying for replacement keys / Access Passes that the Licensee has failed to return, or fees relating to the replacement of locks).

10. Confidentiality:

The Terms of this Agreement are confidential. Neither the Licensor nor the Licensee may disclose them without the other's prior written consent unless required to do so by law or an official authority. This obligation continues after this Agreement ends.

11. Enforcing this Agreement:

The Licensee must pay any reasonable and proper costs (including legal fees) that the Licensor incurs in enforcing this Agreement.

12. Licensor may rectify:

Suppose the Licensee does not comply with any of the provisions of this Agreement, then without affecting any other right of the Licensor, the Licensor may (but is not obliged to) remedy the non-compliance, and the Licensee must reimburse the Licensor for any costs and expenses incurred.

2. SERVICES AND OBLIGATIONS

1.Office Accommodation:

The Licensor will provide the room/office (furnished as agreed between the parties in writing) for which the Licensee has agreed to pay.

The Licensee will have a non-exclusive right to the rooms/offices allocated to it on the specified day(s); unless the Licensee takes the room 7 days a week. For example, another health practitioner may use the same room on other days of the week.

The Licensee will have shared access to the reception area.

2. Office Services:

The Licensor is to provide services during regular opening hours (7am-7pm, seven days per week). The services provided are an internet connection, air-conditioning, lighting, and electricity. The rooms are furnished, but no printer is supplied. The Licensee may only utilise the address reflected in their current Agreement. The Licensor will be responsible for thorough cleaning of the Premises once weekly (generally on the weekend). The Licensee must keep the promises neat and tidy at all times and will be responsible for vacuuming the office floor and emptying rubbish bins at the end of the working day. The Licensee must use the receptacles and other rubbish removal equipment provided by the Licensor and generally comply with the Licensor's directions about cleaning.

3 Licensor Obligations:

(a) *The Licensor will not intervene with the Licensee's reasonable use and enjoyment of the premises during the term of this license.*

(b) *The Licensor will keep the property and its interiors in a reasonable state of repair.*
(c) *The Licensor will pay council, water, sewerage, and strata fees relating to the premises.*
(d) *The Licensor will pay for all charges relating to electricity, internet service, and weekly cleaning.*

4. Licensor IT:

THE LICENSOR DOES NOT MAKE ANY REPRESENTATIONS AS TO THE SECURITY OF THE LICENSOR'S NETWORK (OR THE INTERNET CONNECTION) OR OF ANY INFORMATION THAT THE LICENSEE PLACES ON IT. The Licensee should adopt whatever security measures (such as encryption) they believe are appropriate to the circumstances. The Licensor cannot guarantee that a particular degree of availability will be attained in connection with the Licensee's use of the Licensor's network (or the internet connection). The Licensee's sole and exclusive remedy shall be to request that the Licensor requests the remedy of any network failures within a reasonable time after written notice is provided of a fault.

3. ACCOMMODATION GENERALLY

1. Repair and damage:

The Licensee must not alter any part of the Premises and must keep all parts of the Premises, Centre, its equipment, fixtures, fittings and furnishings which the Licensee uses in good repair and condition. The Licensee is liable for any damage caused by its employees, contractors, agents, clients, customers, patients, invitees and all other persons invited to the Premises by the Licensee. The Licensee must immediately advise the Licensor of any damage to the Premises.

2 Office furniture and equipment:

a) The Licensee must not install any furniture, cabling, IT or telecom connections without the Licensor's prior written consent, which Licensor may give or refuse at its absolute discretion. As a condition to the Licensor's consent, the Licensee (at its cost) must permit the Licensor to oversee any installations (for example, IT or electrical systems) and to verify that such installations do not interfere with the use of the accommodation(s) by other occupants, or the Licensor. Before vacating the Premises, the Licensee must, at its cost, reinstate the Premises to the original condition it was in before the installation works were undertaken.

b) The Licensee may use the Licensor's Furniture until the Termination of this Agreement; however, the Licensor's Furniture remains the property of the Licensor at all times. The Licensor's Furniture is at the risk of the Licensee at all times, and the Licensor makes no warranty that it is, or will be, suitable for the Licensee's proposed use. The Licensor is not required, under any circumstances, to repair or replace the Licensor's Furniture.

c) At the Termination of this Agreement, the Licensee must return possession of the Licensor's Furniture to the Licensor in good condition (fair wear and tear excepted). If the Licensee has removed any of the Licensor's Furniture, or if it is damaged in any way, then the Licensee must replace that Licensor's Furniture.

3. Keys and Access Cards:

Unless otherwise determined by the Licensor (at its discretion), the Licensees will receive a premises key before the

start of the commencement period of the current Agreement period. The Licensee will also have access to a swipe card which allows entry to Level 1 and 2 Meeting Rooms, and other facilities at The Habitat Estate.

4. Insurance:

It is the Licensee's responsibility to arrange insurance for its property which it brings into the Centre, workers compensation insurance required by law and insurance for the Licensee's liability to its employees and to third parties (including public liability insurance for AUD$10 million on a single occurrence basis) (and to ensure the Licensor is named as an interested party on such insurance policies). It is also required that the Licensee and all affiliated staff and contractors have the appropriate professional indemnity insurances relating to the activities they undertake on Premises. The Licensee must produce evidence of the currency of those insurances when requested by the Licensor.

5. Security:

The Licensee must securely lock the access doors upon exiting the Centre. The last person exiting the Centre by the end of the day is responsible for turning off the lights and air conditioning, and locking all doors securely. The Licensee is responsible for any liability, loss, damage or costs incurred by the Licensor arising from a failure of the Licensee to comply with the security requirements of the Centre. The smoke alarms are very sensitive, so the use of candles, fire, cigarettes, and incense is strictly prohibited. In the case of a false fire alarm, the call out costs of the fire brigade and other related charges will be passed on to the licensee.

4. USE

1.*Permitted use:*

The Licensee must only use the Premises for Permitted Use specified on the Cover Page. Residing overnight on the Premises is not permitted.

2.The Licensee's name and address:

The Licensee may only carry on its business in the business name specified in the Agreement or other name with the Licensor's prior written consent.

3. Use of Centre Address:

The Licensee may use the Centre address as its business address. Any other uses of the Centre address are prohibited without the Licensor's prior written consent.

5.COMPLIANCE

1. Warranty by Licensee:

The Licensee warrants to the Licensor that it has obtained any consent or approval required by any relevant law, regulation, instrument or authority which may be necessary for the lawful conduct of the Permitted Use on the Premises. This includes compliance with all rules, regulations and guidelines of professional bodies and associations that regulate businesses of the type carried on by the Licensee.

2. *Comply with the law:*

The Licensee must comply with and observe at its cost all relevant laws and regulations in the conduct of its business and its use of the Centre. The Licensee must not do anything illegal concerning its usage of the Centre. Where the Licensee fails to comply with any relevant laws and regulations about the Premises and the Permitted Use, the Licensor may suspend the Licensee's use of the Premises until the Licensee complies; however, the Licensee's continuing obligation to pay the Monthly Fee (and any other amounts under this Agreement) will not be suspended.

3. *Licensee's employees, agents, etc.:*

The Licensee must ensure that the Licensee's employees, contractors, agents, clients, customers, patients, invitees and all other persons invited to the Premises by the Licensee comply with the Licensee's obligations under this Agreement. As per Strata Laws of the building, there cannot be any pets on the premises (without written permission by the Licensor) and children cannot be left unsupervised on the common area in the Habitat Estate. Smoking is not allowed within the building.

4. *Acknowledgement:*

The Licensee acknowledges that any violation by the Licensee of **Clause 5** shall constitute a material default by the Licensee hereunder, entitling Licensor to Terminate this Agreement, without further notice or procedure immediately, and to pursue damages against the Licensee.

LICENSEE'S RELEASE AND INDEMNITY

1. *Release of Licensor:*

The Licensee agrees that the Licensor is not liable to the Licensee in respect of any loss, damage, or injury to the Licensee or any other person arising from use of the Premises. except to the extent the Licensor has acted negligently in causing that loss or damage. In no event shall the Licensor be liable for any loss or damage for a breach of this Agreement until the Licensee provides the Licensor written notice of such breach and a reasonable time to remedy such breach. If the Licensee believes the Licensor has failed to deliver a service consistent with this Agreement, the Licensee shall provide the Licensor written notice of such failure and give the Licensor a reasonable period to remedy such failure.

2. *Indemnity:*

The Licensee indemnifies the Licensor against any liability, cost, claim, loss, expense or damage arising in connection with: (a) any injury or death of any person caused or contributed to by the Licensee or its employees, contractors, agents, clients, customers, patients, invitees and all other persons invited to the Premises by the Licensee; (b) any loss or damage to any property caused or contributed to by the Licensee or its employees, contractors, agents, clients, customers, patients, invitees and all other persons invited to the Premises by the Licensee; (c) any claim by any third party against the Licensor as a result of any act or omission of the Licensee or its employees, contractors, agents, clients, customers, patients, invitees and all other persons invited to the Premises by the Licensee; and (d) any breach or default of this Agreement by the Licensee.

3 Exclusion of consequential losses, etc.:

The Licensor will not in any circumstances have any liability for loss of business, loss of profits, loss of anticipated savings, loss of or damage to data, third party claims or any consequential loss unless the Licensor otherwise agrees in writing. The Licensee will be responsible for maintaining its insurance for all such potential loss, damage, expense or liability.

6.FEES

1. Bond / Security Deposit:

The Licensee shall pay the Bond specified on the Cover Page to the Licensor on signing of this Agreement. If the Licensor does not receive the Bond, this Agreement will automatically Terminate (unless otherwise agreed in writing). The Bond is held as security for the performance of the Licensee's obligations under this Agreement. Suppose the Licensee is in default of its obligations under this Agreement. In that case, the Licensor may unconditionally apply the whole or part of the Bond to the cost of rectifying the default. If the Licensee elects to Terminate this Agreement after it has paid the Bond but before it has paid the first Monthly Fee amount, then except where the Licensee makes such Termination, the Licensor will not refund the Bond to the Licensee. In other words, without limiting the foregoing in any way, the Bond will be treated as a non - refundable security/holding deposit before commencement of the Term, at which time it will convert to and be treated as a Bond as per the foregoing. Without limiting the foregoing, the Licensee acknowledges that the Bond amount specified on the Cover page is conditional upon the payment of the Monthly Fees using the Payment Method specified on the Cover Page.

2. *Payment:*

The Licensee shall pay the Licensor the Monthly Fee on the 29th day of each successive calendar month. If the Licensee fails to pay any amount due under this Agreement on the due date (including but not limited to the Monthly Fee), the Licensor may:

(a) Terminate this Agreement after seven (7) business days notice and lawfully enter into and take possession of the Premises, and

(b) claim all costs, including legal fees associated with recovering all monies owed to Licensor from the Licensee.

If the Licensee has not paid their Monthly Fee after the Monthly Fee Payment Date, the Licensor will notify the Licensee that they have not received the Monthly Fee two (2) business days after the Monthly Fee Payment Date. The Licensor is entitled to charge the Licensee, and the Licensee shall pay on demand to the Licensor, default interest on any unpaid amount payable by the Licensee under this Agreement from the date it falls due until payment is actually received by the Licensor. Default interest will be calculated daily at a rate of interest 5% above the Reserve Bank of Australia cash rate at the time of the relevant breach.

3. Change in Fees:

The rent shall be reviewed annually and will increase in line with CPI (Consumer Price Index) or Market Review.

If for some reason the Licensor and Licensee does not agree on the Market Review, both parties are to agree to appoint an independent valuer to provide a current market rental valuation. If the Licensor and Licensee cannot agree to a valuer the case will be forwarded to the Rental Tribunal for them to appoint a valuer with the decision deemed final. The cost of the valuation process will be equally shared by the Landlord and the Tenant.

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Byron

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Address: 36/5 Easy Street, Byron Bay, NSW, 2481
Phone: 0403 376 333